3789-A

Executive Order

WHEREAS by Section 2 of the Act of Congress entitled "An Act Authorizing the President to scrap certain vessels in conformity with the provisions of the treaty limiting naval armament, and for other purposes", approved July 1, 1922, it is provided:

> "That the President of the United States is hereby authorized to discontinue the construction of and to cancel or modify any contract entered into for and on behalf of the United States for the construction of seven first-class battleships and six battle cruisers authorized in the Act entitled "An Act making appropriations for the naval service for the fiscal year ending June 30, 1917, and for other purposes," approved August 29, 1916, and for the machinery, materials, equipment, armor, armament, and ordnance equipment therefor: PROVIDED, That whenever any such contract is canceled or modified settlement of claims arising therefrom shall be made by the President upon a fair and equitable basis, as he may determine, out of any funds hereafter to be appropriated for that purpose: PROVIDED, That if the terms of such settlement are unsatisfactory to any claimant such claimant shall be paid 75 per centum of the amount awarded by the President and shall be entitled to sue the United States to recover such further sums as added to the said 75 per centum shall make up such amount as will be just compensation for such claims, in the manner provided by section 24, paragraph 20, and section 145 of the Judicial Code"; and

WHEREAS, the work on certain vessels under construction for the Navy by contract has been suspended since the signing of said treaty and certain obligations incurred by the United States on account thereof;

NOW, THEREFORE, I hereby direct that the Secretary of the Navy shall have and exercise all power and authority vested in me by said section of said Act of Congress, and whatever action may have been taken by the Secretary of the Navy heretofore preliminarily to the limitation of the naval armament of the United States in conformity with the provisions of said treaty or any act of Congress relating thereto is hereby approved.

The powers herein delegated to the Secretary of the Navy may, in his discretion, be exercised directly by him or through such agency or agencies as he may authorize.

WARREN G HARDING

THE WHITE HOUSE,
February 16, 1923.

[No. 3789-A.]

GOVERNMENT PRINTING OFFICE